IN THE HIGH COURT OF JHARKHAND AT RANCHI
Cr. Appeal (DB) No. 767 of 2018

[Against the judgment of conviction and order of sentence dated 21.04.2018 and 23.04.2018 respectively passed by learned Additional Sessions Judge-IX, East Singhbhum Jamshedpur in S.T. Case No. 468 of 2013 arising out of Sitaramdera P.S. Case No. 63 of 2013 corresponding to G.R. No. 1511 of 2013.]

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1. Neela Rani Bose, aged about 70 years, Wife of Late Ajit Kumar Bose;

2. Arup Kumar Bose, aged about 32 years, S/o. late Ajit Kumar Bose.

Both are resident of Holding No. 109, Layout Sitaramdera, P.O. & P.S.- Sitaramdera, Jamshedpur, Dist.- East Singhbhum, Jharkhand.

... ... **Appellants**

Versus

The State of Jharkhand … … **Respondent**

P R E S E N T

SRI ANANDA SEN, J.

SRI PRADEEP KUMAR SRIVASTAVA, J.

For the Appellants : Mr. Manjushri Patra, Advocate

For the State : Mr. Manoj Kr. Mishra, A.P.P.

JUDGEMENT

Dated: 14th October, 2026

By Court:-

1. In the Instant Criminal Appeal, the above named appellants have assailed their judgment of conviction and order of sentence dated 21.04.2018 and 23.04.2018 respectively passed by learned Additional Sessions Judge-IX, East Singhbhum Jamshedpur in S.T. Case No. 468 of 2013 arising out of Sitaramdera P.S. Case No. 63 of 2013 corresponding to G.R. No. 1511 of 2013, whereby and whereunder, the appellants have been held guilty for the offences under Sections 302/34 of the Indian Penal Code corresponding to 103/3(5) B.N.S., 2023 and sentenced to

undergo rigorous imprisonment for life alongwith the fine of Rs. 10,000/- with default stipulation.

Factual Matrix:-

2. Factual matrix giving rise to this appeal in a narrow campus is that on 04.05.2013 at about 9:15 P.M., the informant Gyanendra Singh received a telephonic call from Sanjay Nandi (PW-5) that his sister has died due to burn injuries at her matrimonial home. It is alleged that informant's sister, namely, Maria Gladena Bose was married with Arup Kumar Bose as per Christian ritual about 8 years ago. No issues were begotten out of their wedlock. It is further alleged that Arup Kumar Bose (Appellant No.2), his maternal brother Arpan Das and mother in law of the deceased frequently used to demand money from the deceased and due to non-fulfilment of the demand, she was subjected to cruelty and harassment by the accused persons. It is further stated that Arup Kumar Bose (Appellant No. 2) was addicted to consume wine and frequently used to extend physical assault to his wife. Such activities of the accused persons were usually communicated through phone to the informant. It is believed by the informant that all the accused persons hatching a conspiracy have killed his sister setting her ablaze by sprinkling kerosene oil. Accordingly, F.I.R. (Sitaramdera P.S. Case No. 63 of 2013) was registered against the accused persons for the offences under Sections 302, 120(B), 201, 34 of the I.P.C. and investigation commenced.

3. After conclusion of investigation, the investigating officer has submitted charge-sheet against all the three accused persons named in the F.I.R. Subsequently, the accused Arpan Das was found juvenile and his case was split up and sent up to Juvenile Justice Board for further

proceeding. After taking cognizance, the case was committed to the Court of Sessions, where S.T. Case No. 468 of 2013 was registered and charges were framed under Section 302/34, 201/34 & 120B of the I.P.C.

4. The accused persons did not plead guilt and claimed to be tried.

5. In the course of trial altogether 10 witnesses have been examined by the prosecution.

Apart from oral testimony of the witnesses, following documentary and one material exhibit has been adduced:-

i. Exhibit-1: Signature of J. Marshal Guruvendra Singh (PW-2) on fardbeyan.

ii. Exhibit-1/1: Signature of Gyanendra Singh (PW-3) on fardbeyan.

iii. Exhibit-2: Bank deposit slip dated 22.09.2008 amounting Rs. 2000/-.

iv. Exhibit-2/1: Bank deposit slip dated 28.05.2009 amounting Rs. 6000/-.

v. Exhibit-2/2: Bank deposit slip dated 15.01.2010 amounting Rs. 1000/-.

vi. Exhibit-2/3: Bank deposit slip dated 07.03.2011 amounting Rs. 5000/-.

vii. Exhibit-2/4: Bank deposit slip dated 31.10.2012 amounting Rs. 200/-.

viii. Exhibit-3: Xerox copy of Letter filed before Pastor Methodist Church, Jagdalpur dated 09.09.2012.

ix. Exhibit-4: Signature of Alok Kr. Bose (PW-4) on Carbon copy of inquest report.

x. Exhibit-5: Post-mortem Report.

xi. Exhibit-5/1: Signature of Dr. Vibhakar Kumar on post-mortem report.

xii. Exhibit-6: Fardbeyan.

xiii. Exhibit-7: Formal F.I.R.

xiv. Exhibit-8: Carbon copy of Inquest repot.

xv. Exhibit-9: Arrest memo of Neela Rani Bose (appellant no. 1)

xvi. Exhibit-9/1: Arrest memo of Arup Kr. Bose (appellant no. 2)

xvii. Exhibit-9/2: Arrest memo of Arpan Das.

xviii. Exhibit-10: SFSL Report dated 29.03.2016.

Material Exhibit:-

i. C.D. of post-mortem photography.

6. On the other hand, the case of the defence is denial from the occurrence and plea of innocence with false implication.

However, no oral or documentary evidence has been adduced by the defence.

7. The learned Trial Court after scrutinising the evidence oral as well as documentary adduced by the prosecution and on hearing the arguments of prosecution and defence, put the accused persons under trial for killing Maria Gladena Bose by setting her ablaze by sprinkling kerosene oil on her body with an intention to cause her death, which also found corroboration from the medical evidence and other materials and the learned Trial Court recorded findings that there is no evidence on record constituting offence under Sections 201/34 and 120B of the I.P.C., acquitted the appellants thereunder and accordingly, the appellants were convicted under Section

302/34 of the I.P.C. only and sentenced accordingly, as stated above, which has been assailed in this appeal.

Submissions on behalf of appellants: -

8. Learned counsel appearing on behalf of the appellants assailing the impugned judgement has strenuously argued on following main grounds:-

(i) The learned Trial Court has failed to properly appreciate the evidence available on record, which suffers from inherent weakness and inadmissible.

(ii) The learned Trial Court ignored the material contradictions and discrepancies appearing in the prosecution evidence shaking the very root of the prosecution case.

(iii) For conviction in a case under Section 302 of the I.P.C. the prosecution is bound to prove the ingredients of the said offence beyond all reasonable doubt but the impugned judgment is based upon circumstantial evidence alone, which are very scanty. Therefore, the learned Trial Court has based its judgment on presumption and assumption.

(iv) No incriminating articles were seized from the place of occurrence. No container of kerosene oil was also found at the place of occurrence.

In view of the above grounds, it is pleaded that the impugned judgment of conviction and order of sentence of the appellants is absolutely illegal, improper, based upon inadmissible evidence, conjecture and surmises, which is liable to be set aside. The appellants deserve acquittal form charge levelled against them and this appeal may be allowed.

Submissions on behalf of State:-

9. Per contra; learned A.P.P. defending the impugned judgment of conviction and sentence of the appellants has argued that the learned Trial Court has very wisely and aptly analysed overall aspects of the case and scrutinized the evidence available on record. There is strong evidence against the appellants for committing murder of the deceased by setting her ablaze by sprinkling kerosene oil on her body. All the prosecution witnesses have fully supported the prosecution case. It is also submitted that there is no reason for false implication of these appellants as the deceased died at matrimonial home. Therefore, there is no illegality or infirmity in the impugned judgment of conviction and sentence of the appellants calling for any interference in this appeal, which is devoid of merits and fit to be dismissed.

Analysis, discussions and reasons: -

10. We have gone through the record of the case alongwith impugned judgment in the light of contentions raised on behalf of respective parties.

11. On the basis of rival contentions of both the parties, the only question for consideration in this appeal emerges that ***"as to whether the impugned judgment of conviction and sentence of the appellants suffer from any serious error of law calling for any interference in this appeal or not?"***

12. Before adverting to record any finding on the above point, we have to appraise with the ocular testimony of witnesses available on record adduced by the prosecution during trial.

13. It appears that altogether 10 witnesses have been examined in this case by the prosecution:-

PW-3 Gyanendra Singh is the informant of this case, who happens to be brother of the deceased. According to his evidence, on 04.05.2013, he was in Chhatisgarh at his house. One Sanjay Nandi (PW-5) informed him through telephonic call that his sister has died at her matrimonial home due to burn injuries. He re-called on the same number and told to Sanjay Nandi to provide phone number of Officer in-charge of the concerned police station and requested him to wait till he arrives at the place of occurrence. He has further corroborated the contents of the F.I.R. and has stated that his sister was married 8 years ago with Arup Kumar Bose (appellant no. 2) but she was issueless. Her husband, mother in law and maternal brother Arpan Das often used to ask her money and harass and torture with physical violence to his sister. His brother in law Arup Kumar Bose was also addicted to consume liquor and under drunken condition used to assault his wife (deceased). In connection with torture meted to his sister at the hands of accused, he has also filed an application before Pastor Methodist Church, Jagdalpur on 09.09.2012. This witness, with a view to avoid serious consequences, on several occasions has deposited some money in the account of Arup Kumar Bose and has also filed 5 deposit slips, marked as Exhibit-2 to 2/4. He has also filed compact disk of post-mortem photography of the deceased conducted in his presence, which is marked as Ext.-1. He has also proved signature on fardbeyan, marked as Ext.-1/1.

In his cross-examination, this witness has remained intact as regards aforesaid facts deposed by him. No contradiction or improvement in his evidence has been pointed out in his cross-examination. Therefore, testimony of this witness is firm and consistent.

PW-1 Pradeep Kumar Bose is the uncle of Arup Kumar Bose (appellant no.2), who also after receiving message from one Shyam Swaroop Sinha through telephone went to the matrimonial home of his daughter in law but there was huge crowd and he was not allowed to go upstairs. This witness has also stated that his daughter in law was burnt and killed by Arup Kumar Bose and Neela Rani Bose.

In his cross-examination, this witness admits that earlier, he was residing with the accused persons but compelled to live separately. He further admits that he has no personal knowledge about the occurrence and also re-affirms that he was not allowed to enter into the room where the incident took place. Therefore, he had no occasion to see the dead body of the deceased.

PW-2 J. Marshal Guruvendra Singh also received telephonic call at 9:15 P.M. on 04.05.2013 from Sanjay Nandi that his sister Maria Gladena Bose has died at her matrimonial home due to setting on ablaze. He reached at the place of occurrence in the next day morning, where fardbeyan of his brother Gyanendra Singh was recorded and he also signed over it, marked as Ext.-1. He saw the dead body of his sister kept in morgue. Her tongue and eyes were popped out and whole body was black due to burn. He has also stated that his sister frequently used to complain him through telephonic talk that her husband under drunken condition, used to assault and abuse her brutally and force her to ask money from her brothers.

There is nothing in his cross-examination to rebut his testimony.

PW-4 Alok Kumar Bose also arrived at the place of occurrence after receiving telephonic call but due to crowd, he was also not allowed to go

upstairs. Thereafter, the police prepared inquest report, which was signed by him marked as Ext.-4.

PW-5 Sanjay Nandi has received information about the occurrence through telephonic call from Shyam Shwaroop Sinha (PW-6) and went to the matrimonial home of the deceased and saw the whole body was burnt. He also informed to the concerned police station as well as family members of the deceased through phone as mother in law of the deceased had said that there is no balance in her mobile phone.

In his cross-examination, this witness fairly admits that he has no personal knowledge about the occurrence.

PW-6 Shyam Shwaroop Sinha appears to be eye witness of the occurrence. According to his evidence, on 04.05.2013 at about 7:30 to 8:00 P.M., he was in the balcony of his house and heard voice of Neela Rani Bose (appellant no. 1) that her daughter in law has set herself on fire. He approached to her house and went upstairs and saw that daughter in law of Neela Rani Bose was burnt and smell of kerosene was coming. This witness has also identified his signature on inquest report (Ext.- 4/1).

In his cross-examination, this witness admits that at the time of occurrence, Neela Rani Bose was saying save her daughter in law. He also tried to put off the fire. How the incident took place, he could not say.

PW-8 Dr. J. Sriniwas Rao has conducted autopsy on the dead body of the deceased Maria Gladena Bose and found following:-

The built was average, complexion not recognized due to extensive burn. Right eye ball bulges out completely, left bulges less. Blood stained frothy discharge from nostrils. Tongue protruded and bitten in between

teeth and burnt. Scalp hair black. Front, middle and top of scalp hair, axillary and pubic hair were signed. Body and scalp hair emits kerosene oil smell. External genitnlia burnt, de-gloving of both hands were present. Rigor mortis /cold stiffner present over upper and lower limbs.

Injureis:-

(1) Dermoepidermal deep burn on whole body from head to toes.

Percentage of Burn- About 100%.

(2) Contusion right from upper chest muscles 6 cm x 5 cm size on deep incision.

(3) Contusion left frontal scalp 4 cm x 3 cm size.

(4) Contusion top middle of scalp 4 cm x 3 cm size.

(5) Contusion left posterior parietal scalp 5 cm x 4 cm size.

(6) Contusion left temporal muscle.

(7) Contusion left tempero parietal lobe of brain with sudural haemorrhage.

Opinion:-

(i) Burn is antemortem.

(ii) Injuries noted above are antemortem and caused by hard and blunt object.

(iii) Cause of death- Death is due to shock as a result of extensive burn, however, injury over the brain is also sufficient to cause death in ordinary course of nature.

(iv) Viscera & blood preserved for chemical examination.

(v) Time since death- 36 hours to 48 hours (approx) from time of post mortem examination.

(vi) Mode of Burn- Not accidental in nature

The post mortem examination was conducted by him and Dr. Vibhakar Kumar. He has identified his writing and signature on P.M. report marked as Ext.- 5. He has also identified the signature of Dr. Vibhakar Kumar on P.M. report, marked as Ext.- 5/1.

In his cross examination, this witness has stated that size of injury can be calculated even if the body is 100% burnt. The death was either suicidal or homicidal but not accidental.

The post mortem report of deceased also goes to show that chemical examination of viscera of the deceased sent for examination contained no metallic alkaloidal pesticidal volatile or non-volatile poison.

PW-9 Brij Kumar Sinha is the investigating officer of this case. He has proved the fardbeyan of the informant recorded by the then officer in charge as Ext.-6. He has also proved the formal F.I.R. as Ext.-7 and the inquest report of the deceased as Ext.-8 prepared by him in presence of witnesses. The dead body of the deceased was sent to M.G.M hospital for post mortem examination. In the course of investigation, he recorded re-statement of the informant and statement of witnesses, visited the place of occurrence, where the grill of first floor of the house was locked and naked body of the deceased was found on the second floor. He arrested the accused Neela Rani Bose (appellant no. 1), Arup Kumar Bose (appellant no. 2) and Arpan Das. He has also recorded statement of independent witnesses. He sent the blood sample to S.F.S.L. for examination. He also received post mortem report of the deceased and finding sufficient evidence against the accused persons, submitted charge-sheet.

In his cross-examination, this witness admits that information about the occurrence was received at police station through telephonic message. He also admits that witness Sunita Kujur (PW-7) has stated before him that grill was locked and smell of kerosene oil was coming. There is nothing else in his cross-examination pointing out towards any contradiction or improvement in the testimony of ocular witnesses examined in this case.

PW-10 Vijay Kumar, Assistant in SFSL has proved the SFSL report marked as Ext.-10.

14. On the other hand, defence has not adduced any oral or documentary evidence.

15. We have given thoughtful consideration to overall aspects of the case as testified by the prosecution witnesses during trial and also examined the evidence available on record.

16. From the aforesaid discussion of evidence, it emerges that there is no dispute that the deceased was married wife of Arup Kumar Bose (appellant no. 2). It is also admitted fact that on the date of occurrence, deceased was residing at her matrimonial home alongwith her husband Arup Kumar Bose and her mother-in-law Neela Rani Bose. The death of the deceased was due to 100% burn injuries caused by setting her on ablaze pouring kerosene oil, which has been also proved by Dr. J. Sriniwas Rao (PW-8), who has also opined that death of the deceased may be homicidal or suicidal but it cannot be accidental. There is no case of defence that the death of the deceased was accidental burn. It is also brought on record by the prosecution that prior to the occurrence, the accused persons were consistently raising demand of money from the

deceased to bring from her brothers. The Ext-2 series, deposit slips of money on different occasions in the account of Arup Kumar Bose (appellant no. 2) by the informant is also proved and not rebutted by the defence. The prosecution has also been able to prove tense relationship and frequent quarrel with the deceased at the hands of appellants and she was frequently subjected to cruelty both mental and physical. The presence of the appellants at the relevant time of occurrence in their house alongwith the deceased is also no denied. None of the appellants has taken any step to save the deceased rather locked the grill of the first floor from outside and the deceased was in second floor, so that no one can attempt to rescue the deceased. The nature of injuries as exposed in the post mortem report of the deceased are self-explanatory, which negates the possibility of any self-inflicted burn injuries. From the aforesaid proved foundational circumstances, reasonable inference about commission of murder of the deceased by the appellants can be drawn. Therefore, corresponding burden of prove shifts on the shoulder of accused persons to prove the facts specially within their knowledge under Section 106 of the Indian Evidence Act to explain the facts and circumstance under which the deceased died in her matrimonial home while she was in their custody.

17. In their statement under Section 313 of the Cr.P.C. the accused persons have simple denied the occurrence and pleaded their innocence. The appellant no. 1 Neela Rani Bose also denied the receipt of any money from the brother of the deceased but the circumstances under which and why the deceased was set on ablaze has not been explained at all and no defence plea of alibi has been taken.

18. It is trite that provision of Section 106 of the Indian Evidence Act is not intended to relieve the prosecution of its burden to prove guilt of the accused beyond reasonable doubt, but it would apply to cases where the prosecution has succeeded in proving facts from which a reasonable inference can be drawn regarding the existence of certain other facts, unless the accused by virtue of his special knowledge regarding such facts, failed to offer any explanation which might drive the Court to draw a different inference.

19. In the case of State of ***"Madhya Pradesh vs. Balveer Singh"*** reported in ***(2025) 8 SCC 545***, wherein the accused was charged with killing his wife in night in his house. The accused neither claimed that deceased was suffering from any ailment nor there found any evidence worth the name to suggest the possibility of her death occurring due to any health issue. In the case of non-explanation of circumstances, specially within the knowledge of the accused, the Hon'ble Apex Court has held as under:-

> Section 106 of the Evidence Act provides that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. The word "especially" means facts that are or exceptionally within the knowledge of the accused. The ordinary rule that applies to the criminal trials that the onus lies on the prosecution to prove the guilt of the accused is not in any way modified by the rule of facts embodied in Section 106 of the Evidence Act. Section 106 of the Evidence Act is an exception to Section 101 of the Evidence Act. Section 101 with its Illustration (a) lays down the general rule that in a criminal case the burden of proof is on the prosecution and Section 106 is certainly not intended to relieve it of that duty. On the contrary, it is designed to meet certain exceptional cases in which it would be impossible or at any rate disproportionately difficult for the prosecution to establish the facts which are, "especially within the knowledge of the accused and which, he can prove without difficulty or inconvenience". (para-77)
>
> Section 114 of the Evidence Act, empowers the court to presume the existence of any fact which it thinks likely to have happened. In that process, the courts

shall have regard to the common course of natural events, human conduct, etc. in addition to the facts of the case. In these circumstances, the principles embodied in Section 106 of the Evidence Act can also be utilised. (Para 80)

If an offence takes place inside the privacy of a house and in such circumstances where the assailants have all the opportunity to plan and commit the offence at the time and in circumstances of their choice, it will be extremely difficult for the prosecution to lead evidence to establish the guilt of the accused if the strict principle of circumstantial evidence is insisted upon by the courts. A Judge does not preside over a criminal trial merely to see that no innocent man is punished. A Judge also presides to see that a guilty man does not escape. Both are public duties. The law does not enjoin a duty on the prosecution to lead evidence of such character which is almost impossible to be led or at any rate extremely difficult to be led. The duty on the prosecution is to lead such evidence which it is capable of leading, having regard to the facts and circumstances of the case. Here it is necessary to keep in mind Section 106 of the Evidence Act which says that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. Illustration (b) appended to Section 106 of the Evidence Act throws some light on the content and scope of this provision. (Para 81)

Where an accused is alleged to have committed the murder of his wife and the prosecution succeeds in leading evidence to show that shortly before the commission of crime they were seen together or the offence takes place in the dwelling home where the husband also normally resided, it has been consistently held that if the accused does not offer any explanation how the wife received injuries or offers an explanation which is found to be false, it is a strong circumstance which indicates that he is responsible for commission of the crime. (para 81)

20. In view of the above discussion and reasons, we don't find any error of law in the impugned judgment. There is no substance in the point of arguments raised on behalf of the appellants and no merits in this appeal. Therefore, the conviction and sentence passed by the learned Trial Court against the appellants is hereby confirmed and upheld.

21. Accordingly, this appeal is **dismissed**.

22. Appellant No. 2, namely, Arup Kumar Bose is in custody. Let a copy of this judgment be furnished forthwith to the appellant no. 2 through the learned A.P.P.

23. Appellant no. 1, namely, Neela Rani Bose, is on bail vide order dated 23.11.2023 passed by the co-ordinate bench of this Court. Her bail bond is hereby cancelled and sureties are also discharged. The appellant no. 1 Neela Rani Bose is directed to surrender before the concerned learned Trial Court within two months from the date of this judgment to serve the sentence awarded to her.

24. If Appellant No. 1 Neela Rani Bose does not surrender before the concerned Trial Court within the stipulated period, the learned Trial Court shall take all coercive steps in securing the attendance of the appellant no.1 and sending her to jail custody.

25. Pending I.A.(s), if any, stands closed.

26. Let a copy of this judgment be sent to the concerned Trial Court for information and needful.

(ANANDA SEN, J.)

(PRADEEP KUMAR SRIVASTAVA, J.)

High Court of Jharkhand at Ranchi
Date: 14/10/2026
Rahul/ ***N. A. F. R.***
Uploaded on: 28/10/2026